

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, October 30, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-30982 against Police Officer Binah Previl, Tax Registry No. 970781. This case was conferenced on October 24, 2024, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of a Command Discipline Schedule A and the total forfeiture of five (5) vacation days, after Police Officer Previl accepted the findings of substantiation of the allegations contained in the Charges and Specifications dated June 28, 2024. Charges and Specifications are dismissed for plea purposes.

Andre Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2024-30982
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO.	SURNAME, PREVIL	FIRST BINAH	M.I.	COMMAND TB RESPONSE / 848
SHIELD NO. 06037	TAX REGISTRY NO. 970781	SOCIAL SECURITY NO.		DATE APPOINTED 12/29/2020
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Binah Previl, on or about, February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Ave, New York County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) without sufficient legal authority.	DISMISSED	VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Binah Previl, on or about, February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Ave, New York County, wrongfully used force, in that he forcefully placed § 87(2)(b) in handcuffs and pulled § 87(2)(b) up on his on his feet, without police necessity.	DISMISSED	A - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.
3. Police Officer Binah Previl, on or about, February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Ave, New York County, used offensive language regarding § 87(2)(b) actual or perceived disability, by referring to § 87(2)(b) as a "...retard," without police necessity.	DISMISSED	



FIRST DEPUTY COMMISSIONER 1/2/25
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)



POLICE COMMISSIONER 1/2/25
DATE

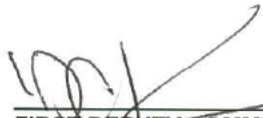
**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2024-30982
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO.	SURNAME, PREVIL	FIRST BINAH	M.I.	COMMAND TB RESPONSE / 848
SHIELD NO. 06037	TAX REGISTRY NO. 970781	SOCIAL SECURITY NO.	DATE APPOINTED 12/29/2020	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
4. Police Officer Binah Previl, on or about, February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Ave, New York County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that he was discourteous to § 87(2)(b) by stating in sum and substance, "this guy is a retard," without police necessity.	DISMISSED	
5. Police Officer Binah Previl, on or about, February 28, 2023, at approximately 0900, while assigned to Transit District 4 and on duty, in the vicinity of the 125th Street Subway Station on the 4, 5, and 6 line, located at East 125th Street and Lexington Ave, New York County, abused his authority as a member of the New York City Police Department, in that he improperly used his body-worn camera by not activating his Body Worn Camera device at the beginning of this incident.	DISMISSED	


FIRST DEPUTY COMMISSIONER 1/2/25
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER 1/28/25
DATE

THIRD ENDORSEMENT

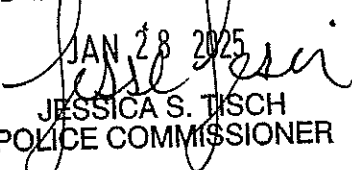
First Deputy Commissioner to Police Commissioner January 2, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2024-30982 (PODS Case No. C-030895) against Police Officer Binah Previl, Tax No. 970781, with the recommendation that Charges and Specifications against Police Officer Previl be dismissed and that Police Officer Previl receive a Schedule "A" Command Discipline, with the forfeiture of five (5) vacation days; I concur. **FOR YOUR APPROVAL.**



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED
JAN 28 2025

JESSICA S. TISCH
POLICE COMMISSIONER